

15.	26CV0608	BENJAMIN DAVID CROCKER VS. COUNTY OF EL DORADO
DEMURRER		

Defendant, County of El Dorado (“Defendant”), filed a demurrer to Plaintiff’s, Benjamin Crocker (“Plaintiff”), Complaint on May 27, 2026. Defendant simultaneously filed a request for judicial notice on the same date. No opposition has been received.

Judicial Notice

Defendant requests the Court take judicial notice of Plaintiff’s original complaint. Pursuant to Evidence Code § 452(d) the Court grants Defendant’s unopposed request for judicial notice of Exhibit 1 (Plaintiff’s original Complaint).

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 (“If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”).

Based on the Declaration of Joe Little, counsel attempted to meet and confer with Plaintiff prior to filing, but Plaintiff requested an in-person meeting. Mr. Little further attempted to call Plaintiff to meet and confer, but Plaintiff did not pick up or return his call.

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Background

Plaintiff's complaint was filed on March 6, 2026. Plaintiff asserts the following causes of action: 1) Unreasonable Search and Seizure – Excessive Force (42 U.S.C. § 1983); 2) Bane Act (Cal. Civ. Code § 52.1) California Tort Claims Act, Cal. Gov't Code §§ 815.2, 820; 3) Violation of Article 1, § 13 of the California Constitution; 4) Negligence Cal. Govt. Code § 820 and California Common Law; 5) Municipal Liability for Unconstitutional Custom or Policy (42 U.S.C. § 1983); 6) Battery (Cal. Govt. Code § 820 and California Common Law).

This matter stems from Plaintiff's arrest by Amador County Sheriff Deputies for an alleged warrant out of El Dorado County on October 29, 2025. Plaintiff makes no allegations against El Dorado County except that it refused to issue an arrest warrant at Plaintiff's request and that El Dorado is responsible for the alleged misconduct of an unnamed judicial officer of this Court.

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff's ability to prove those allegations." (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) A judge gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank*, supra, 39 Cal.3d at p. 318.)

Discussion

Defendant demurs to Plaintiff's complaint and each cause of action on the following grounds:

1. Plaintiff failed to state facts in the Complaint sufficient to constitute any cause of action against the County (Code of Civ. Proc. § 430.10(e)); and
2. The First Cause of Action through Sixth Causes of Action fail because there is no right to have someone else arrested under state or federal law, and because the Court and the County are separate legal entities not responsible for alleged wrongdoing by the other.

Demurrer to Entire Complaint

Under California Code of Civil Procedure § 430.10(e), a defendant may object by demurrer on the ground that the pleading does not state facts sufficient to constitute a cause of action. Defendant argues the entire Complaint does not allege any wrongdoing by El

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Dorado County. The Complaint only alleges that El Dorado County failed to arrest an Amador County Sheriff Deputy that deployed excessive force.

The Court finds that Plaintiff failed to assert any cause of action against Defendant. The demurrer is sustained without leave to amend, finding there is no reasonable possibility of curing the defect. As the Court has sustained Defendant's demurrer to the entire complaint, Defendant's demurrer to the First through Sixth Causes of Action are rendered moot and will not be addressed.

TENTATIVE RULING #15:

DEFENDANT'S DEMURRER TO PLAINTIFF'S ENTIRE COMPLAINT IS SUSTAINED WITHOUT LEAVE TO AMEND.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.